Gmail

Nick Stoop <nick.stoop@gmail.com>

Fwd: Meeting [W-EU.FID140714]

Nicola Johnson <nicky.johnson@hotmail.com> 24 April 2018 at 11:33
To: Nick Stoop <nick.stoop@gmail.com>

Simon seems to think that Withers are worried about their fees in light of the huge depreciation in value of WH. Market predictions for the next 2 years are gloomy. The value may well go down further and there may not be enough to cover their fees. He doesn't think however that they will force a sale but they'll want to get me into an arrangement to ensure that they are paid in full. Hopefully nothing as sinister as bankruptcy. I can only know what they plan if I go to the meeting. Going in with a lawyer to see my lawyers seems excessive at this point. I can't afford one anyway. I will have to go but will not agree to anything there and then.
If you're still up for it I would like to go ahead with the Barclays claim. I have written to Davina to see if she will look at your contract. I know she's usually very busy so I'm not sure when she'll get back to me. I hope this week.

N

From: Nick Stoop <nick.stoop@gmail.com>
Sent: 23 April 2018 17:15:56
To: Nicola Johnson
Subject: Re: Meeting [W-EU.FID140714]

Dear Nicola,

Please see Joe's email, below. Let's chat when you have a moment.

x

N

On 23 April 2018 at 17:13, Joe Edwards <joe.edwards@crsblaw.com> wrote:

> Hi Nick
>
> Thanks for sending this across.
>
> At first glance, I suspect that Withers is now looking to increase the pressure on Nicola for its bills to be paid. The fact the credit control committee, the head of disputes and the head of property litigation are involved suggests a change of tact by Withers.

I wouldn't recommend Nicola attends the meeting alone without legal support. You can't know what Withers intend – potentially they may ask Nicola to sign a power of attorney given them custody of the sale. Alternatively, they may look to threaten other avenues, for instance possible bankruptcy.

We are, of course, more than happy to attend the meeting with Nicola. Just let me know if you/Nicola need anything further from us.

Kind regards

Joe Edwards | Associate

for and on behalf of Charles Russell Speechlys LLP

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From: Nick Stoop [mailto:nick.stoop@gmail.com]
Sent: 23 April 2018 16:56
To: Joe Edwards
Subject: Fwd: Meeting [W-EU.FID140714]

---------- Forwarded message ----------
From: **Nicola Johnson** <nicola.johnson21@gmail.com>
Date: 23 April 2018 at 11:22
Subject: Fwd: Meeting [W-EU.FID140714]
To: Nick Stoop <nick.stoop@gmail.com>

I wrote to James this morning asking for an explanation.

---------- Forwarded message ----------
From: **Copson, James** <James.Copson@withersworldwide.com>
Date: Mon, Apr 23, 2018 at 11:00 AM
Subject: Meeting [W-EU.FID140714]
To: Nicola Johnson <nicola.johnson21@gmail.com>
Cc: "Handel, Richard" <Richard.Handel@withersworldwide.com>

Dear Nicola

Thank you for your email.

As you might expect the firm's Credit Committee has had your situation on its radar for a long time. It tasked me a little while ago with obtaining a report from Johnny Fuller on the marketing for sale of Warwick House as the property had been on the market for sale since the early Autumn of 2017. This is the report that you have seen. Following my receipt of that report I sent it off to the Credit Committee. After that the Committee asked Peter Wood in his capacity as Global Head of the firm's Dispute Resolution Division to have a meeting with you to see if we could formulate with you a way to achieve a sale of Warwick House within a reasonable period of time. Peter in turn has asked Andrew Chesser, who is the partner in charge of property litigation, to assist him. The reasons for his involvement are twofold. The first is that Warwick House is subject to charging orders as a result of costs orders you obtained against Ziad and Warwick Estates. The second is that Barclays has appointed receivers to recover sums owing under the mortgage (albeit, as you know, that they have not taken further action). Peter felt he needed Andrew's involvement because these are areas of his expertise and he wanted to get the legal position right in connection with his discussions with you.

As you know, I am very happy to join you at the meeting, especially since you have been working with me throughout and this is probably the easiest way to effect the introduction.

I hope this provides you with the explanation you are looking for. Do please give me a call if you have any queries.

We are looking at fixing a meeting for next week. It might be best if we speak to fix the time as I need to make sure our diaries converge to make this possible.

I hope you enjoyed the sunshine too.

Best wishes

James

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